

the Deemed Admitted Order and the underlying court filings in connection with the Deemed Admitted Order.

Based upon the Deemed Admitted Order, it is evident that Defendant has been deemed to admit to the fact of the subject debt and the amount owing, \$24,956.59.

Those admissions are binding upon Defendant for purposes of a motion for judgment on the pleadings. *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746 (“Judicial admissions may be made in a pleading, by stipulation during trial, or by response to request for admission.”).

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. Plaintiff shall file Order.

3. 9:00 AM CASE NUMBER: L25-00290
CASE NAME: CITIBANK, N.A. VS. RAPHAEL UZOMA
***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT PURSUANT TO STIPULATION**
FILED BY:
TENTATIVE RULING:

Plaintiff filed a Motion on 12/15/25 that was originally scheduled to be heard on 3/3/26. But on 3/3/26, this court found that Plaintiff had not served Defendant with notice of the Motion, and continue the Motion to 6/2/26, 9am.

This court also ordered, on 3/3/26, that Plaintiff must notify Defendant of the 6/2/26 Motion date.

There is no proof that Plaintiff has notified Defendant.

Disposition

This is the second motion appearance where Plaintiff has failed to notify the Defendant.

This Motion will be dropped, and not continued.

Court will file the Order.

4. 9:00 AM CASE NUMBER: L25-01414
CASE NAME: BANK OF AMERICA N.A. VS. JIMMY COBB
***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTIONFOR ORDER THAT**
MATTERS INV. REQUEST FOR ADMISSION OF TRUTHJIMMY L COBB, 'OF FACTS BE DEEMED
ADMITTED
FILED BY: BANK OF AMERICA N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue ("Set One"), numbered One through Eight, in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Set One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.